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California extending its bans on some food additives to schools

September 5, 2024 | Food Safety News (USA)
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OpenURL Link

The California Legislature has banned more food ingredients in the name of food safety. This time, six food dyes are being banned from California's public schools. Passed unanimously by the California Senate and Assembly, the California Food Safety Act only awaits the governor's signature to become law.

The bill prohibits public schools from serving food and beverages containing synthetic colorings, which California lawmakers believe are linked to neurobehavioral issues experienced by some children.

Assembly Bill 2316 bans dyes in schools, including Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2, and Green 3. The ban follows the complete prohibition of the manufacture, sale, and distribution of any foods anywhere in California containing the additives red dye no. 3, titanium dioxide, potassium bromate, brominated vegetable oil, and propylparaben.

Jesse Gabriel, the Assembly representative who has sponsored both sets of bills, said the state is responsible for protecting students from chemicals that can interfere with their learning ability. He said AB2316 will encourage manufacturers to stop using additives and empower schools to protect children much better.

That broader law made California the first state to ban toxic chemicals from food and set off other similar measures around the country. Two prominent non-governmental organizations, Consumer Report and the Environmental Working Group, have supported the new California restrictions.

The legislative counsel in Sacramento analyzed the bill, which prohibits substances in public schools. It states that:

"Existing law requires the State Department of Education to develop and maintain nutrition guidelines for school lunches, breakfasts, and all food and beverages sold on public school campuses. Existing law requires those nutrition guidelines to be consistent with the requirements for a nutritionally adequate breakfast and a nutritionally adequate lunch. Existing law defines a nutritionally insufficient breakfast and a nutritionally adequate lunch for these purposes to mean those that qualify for reimbursement under the most current meal pattern for the federal School Breakfast Program and the federal National School Lunch Program, respectively.

"Existing law requires a school district, county superintendent of schools, or charter school maintaining kindergarten or any of grades 1 to 12, inclusive, to make available a nutritionally adequate breakfast and a nutritionally adequate lunch, free of charge, during each school day to any pupil who requests a meal without consideration of the pupil's eligibility for a federally funded free or reduced-price meal. Existing law authorizes a school operated and maintained by a school district or county office of education, from midnight before to 30 minutes after the end of the official school day, to sell food and beverages other than meals reimbursed by specified federal nutrition programs only if the food or drinks meet dietary guidelines, as specified, depending on grade level.

"This bill, beginning Dec. 31, 2027, would prohibit a school district, county superintendent of schools, or charter school maintaining kindergarten or any of grades 1 to 12, inclusive, from offering a nutritionally adequate breakfast or lunch containing specified substances, including, among others, red 40 and yellow 5 and would prohibit a school operated and maintained by a school district or county office of education from selling food or beverages, except for food items sold as part of a school fundraising event, containing those specified substances, as provided. To the extent this bill would impose additional requirements on public schools, the bill would impose a state-mandated local program."

"The California Constitution requires the state to reimburse local agencies and school districts for certain costs mandated by the state. Statutory provisions establish procedures for making that reimbursement. This bill would provide that if the Commission on State Mandates determines that the bill contains costs mandated by the state, reimbursement for those costs shall be made according to the statutory provisions noted above."

Consumer Reports and the Environmental Working Group press the FDA for national action on food additives each time a state acts independently.

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- **Citation (apa Style)**
  Flynn, D. (2024, September 5). California extending its bans on some food additives to schools*Food Safety News (USA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19B66B8508698C98.